

ANC

PLANET stories

WINTER



20c



SWORD OF FIRE

Reveler of an Enslaved Universe
by EMMETT McDOWELL

Earth was dead. But Earth might bloom again,
fed by the blood of that hard-shelled Cain . . .

THE DEAD-STAR ROVER

A Startling Novel by ROBT. ABERNATHY

OPPEL • FENNEL • de COURCY • WALTON

ANC

PLANET stories

WINTER



20c

SWORD OF FIRE

Novel of an Enslaved Universe
by EMMETT McDOWELL

Earth was dead, But Earth might bloom again,
fed by the blood of that hard-shelled Cain . . .

THE DEAD-STAR ROVER

A Startling Novel by ROBT. ABERNATHY

OPPEL • FENNEL • de COURCY • WALTON

The Project Gutenberg eBook of Tubemonkey

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Tubemonkey

Author: Jerome Bixby

Illustrator: Herman B. Vestal

Release date: March 2, 2021 [eBook #64672]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/64672

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK TUBEMONKEY

TUBEMONKEY

By JEROME BIXBY

**Radiations had shorted his brilliant pilot's
brain, left him an aimless, childish hulk. Yet
Rhiannon had his moments—when he needed them.**

**[Transcriber's Note: This etext was produced from
Planet Stories Winter 1949.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Echoed by the sloping, sun-drenched concrete walls, booming above the high, bony clatter of monorail cranes, shaming the entire fuming, metallic hubbub of Boat Bed 52, the sound might have been the cavernous indignation of some giant beast being dragged zoo-ward from a Bio-Institute boat. It was, however, a voice, singing:

*Oh-h-h, the boats come in
An' the boats go out
An' we clean 'em an' screen 'em an' preen 'em.
We fix their fins
An' we polish their snouts
With a five second breather between 'em.*

*I-i-if she comes in smash
From a steerocket lash
Do we wait 'til they've counted the dead?
Oh never, tut tut—
We just plate up her butt
An' fix up the rest in the—the—*

Mountainous Rhiannon couldn't remember the last word. The clouded crystal, that was Rhiannon. He killed his buffing-ray and aimed a bellow that not only shivered the eardrums of its target but woke up Sergeant Atoms a hundred feet below, bringing him to his feet with an adoring bark.

"Hey, Stevie, what's a last word?"

Steve Podalski swung his legs into view and slid carelessly down the dull metal roundness of tube fourteen, like a boy on a barrel. His magnetic boots thunked onto tube thirteen and took hold. He gave Rhiannon a look compounded of acid and pity. "Go to hell with your noise."

Off at the other end of Bed 52 a gong sounded its invitation to cease work and relax for a while. The twelve Navy spaceboats in 52, lined hip to hip like reclining madames on their slanting cradles, seemed suddenly to begin to shed their skins as a solid parasitica of out-ship workers melted in streams toward the upthrust frameworks of the lifts.

"I comin gout." A small cabbagelike Asteroideal came out of the smudgy darkness of the tube, a scraping-ray in each flat tentacle. "I knockin goff." Without a break in its fluid motion it climbed onto Rhiannon's arm and couched itself in the angle of his elbow.

"Yeah, me too. Coming, Stevie?"

Podalski shook his head.

He stood and watched Rhiannon and Tweety—Tieu-tuiey was its given name, but to pronounce it correctly always sounded a little gay—make their way toward the lift. He shook his head again. Once a pilot, he thought, not necessarily always a pilot. Space did rotten things to men who got careless with their radiation screens. It blotched their minds, tossed up fences around memory and intelligence.

A most brilliant crystal—that's what Rhiannon had once been.

Sixty feet away and four stories above the concrete floor of Bed 52, a man stood by the curving window of Karrin's office and watched Rhiannon descend in the lift. He was a small, padded man with the sly look of the lower Mars suburbs about him.

"Tubemonkey," he said, curling his lips over the word.

Karrin raised his sober, business-man's eyes from their inspection of the briefcase on the desk before him. "He'll do perfectly, Lin. He's just idiot enough to get us there and back and then forget all about it. He got a dose of cosemics—sometimes he can't even remember his own name."

"Yes?" Lin Janus' cold gaze followed Rhiannon as the big man went through the distant playground gate. Rhiannon was carrying Tweety on his shoulder and bouncing every other step into the air, and Tweety had wrapped indignant tentacles around his steed's head. A mud-colored puppy went scooting after them, yanked by jealousy from the quilted lay his master had prepared for him beneath Cradle Nine.

"Can he still handle a boat?"

"Not for combat." Karrin leaned far back in his chair and locked his hands behind his head with a dignity that made the awkward position seem very right. "He can still hit space, though."

Janus turned away from the window.

"You'd better make certain that he forgets," he said.

Karrin shrugged; another killing wouldn't matter much. "Why do we need a pilot in the first place?"

"You took me out last time," Janus said flatly, "and I damned near died of fright." He tapped the briefcase. "You're sure this is the right stuff? I can't tell from looking, you know—hyper-atomics are out of my line."

Karrin smiled slightly and brought his body forward in the chair. "You're getting what you're paying me for." He took his time about lighting a cigarette and then laid it on the edge of the desk as he stood up. He took a leather folder from the briefcase, opened it to reveal a dozen closely printed and diagrammed sheets.

"These," he said, "are Llarn's defenses. Take my word for it."

Unlike most wars, this one had started formally and in good military taste. From their headquarters on Llarn's moon the Rebels had made their request for political autonomy, and denial had come promptly, through Llarn's Council, from the far off Earth Federation. The Rebels had announced their intent to revolt in force and the first engagement had occurred that very day—a space battle, fought competently by both sides, and a draw. Llarn, Earth's first extra-Solar pioneer world, threw up hyper-atomic shields—Llarn's moon did likewise—and the matter rested there in a checkmate of technological perfection.

Subsequent space battles had been fought, but these mattered very little. It had boiled down to a secret service war; a deadlock to be broken by the first side skillful enough to spy out the plans of the enemy's defense set-up. Sabotage could then finish the job.

The attendant looked at Rhiannon without enthusiasm. He gave the big man a time ticket and turned and went through an arched doorway. He had just pulled a fresh punching bag from the dwindling supply when a *wham* sound ran across the air of the playground outside.

Surrounded by pained chuckles, Rhiannon looked unhappily at the dangling plastic ruin and allowed himself to be shoved aside by the bitter attendant. Then, when the damage was repaired, he drew back his huge right arm again. The attendant grabbed it.

"Hold on, Rhiannon, there's a rocket game over here, fella. Come on and I'll show it to you!" He pulled the reluctant giant over to a facsimile control board set against the wall; watched for, and saw, the huge smile break out. Every day was a new life for Rhiannon, and the presence of this mock control board—installed to keep him out of trouble—came always as a wonderful surprise.

"Sit down, Rhiannon. Tubes set?"

A tense nod.

"Gravity O.K.? Green light from Central? *Blast off!*"

Rhiannon zoomed his boat into outer space and began to chase a comet. It got away from him. After a while he thought it would be nice if he could blast the whole Rebel navy out of the void—and they appeared, tier upon tier of them, in gleaming battle shields.

"Sergeant Atoms!" he rumbled. "Make ready to fire."

Atoms rose up on his hind legs, compelled and controlled by the strange and inexplicable telepathic aftermath of Rhiannon's misfortune. The former pilot's "cosmic braincut"—and the "braincuts" of the other few similar radiation cases—had resulted in this sour blessing: had stepped up their mental broadcasting apparatus, and left them very little to broadcast. Humans could often pick up random thoughts from these men, while animals reacted easily to their will.

Thus it was that "Sergeant" Atoms placed his paws on the dummy firing button; a temporarily selfless extension of Rhiannon's physical and psychical form.

Together, they wiped out the Rebel fleet in a matter of seconds.

Rhiannon was exploring Polaris when a hand fell lightly upon his shoulder. He whirled up and around snarling. A Rebel spy on his boat: he'd kill the son

Karrin ducked, his face seeming to sag pallid from the front of his skull. "Whoa, now, Rhiannon, it's Karrin—it's Karrin!"

"Rebel spy!" Rhiannon had Karrin dangling off the floor at the end of his arm. He drew back his other fist—all the way to Polaris—for the blow that would end the war. Then reality registered behind those glazed, distant-seeing pupils.

"Mr. Karrin! I'm sorry sir." He set his employer's sandals back on the floor and began to shuffle uncomfortably.

Karrin looked about him, his fury artfully concealed beneath a rigid, we-must-be-patient smirk. The other workers in the ground, some of them poised in mid-step after having started to the rescue, were looking embarrassed and quickly turned to resume their games. The sounds of bowling and fencing and tennis and swimming drove away the silence, and the odd patois of multi-specied mechanics and technicians swelled up like jungle chatter.

Karrin put his hand on Rhiannon's sleeve and walked the big man into the vast quiet of Bed 52. Atoms came after them, wagging almost everything but his head which arrowed straight and true after the giant figure.

When he was paid no attention, however, he sulked over to his box and lay down and was immediately asleep. "Sergeant" Atoms would have been a poor choice to stand guard duty—he had been known to sleep the clock around, silent and unmoving. Great boats had been lifted from the cradles above him and others put into their place, and Atoms had dreamed on and on. And on.

Rhiannon started to apologize again.

"That's perfectly all right, soldier," Karrin said smoothly. "Commendable attitude!" He led the way past the cradles toward the rear of the Bed. "You want to help win the war, don't you?"

"Yes, yes," Rhiannon groaned.

Karrin beamed his approval. "Well, now, you may be able to do just that, my boy! How would you like to be—"

"I was exploring Polaris, sir." Rhiannon's tones were suddenly vacant. "The people there got three hea—" and the latter part of the word remained unspoken, forgotten.

Karrin's smile wavered. They had halted by a freight entrance opening onto the green-carpeted rear grounds. He drew the big man closer to him and snapped his words like a whip.

"Now *listen*, Rhiannon! How would you like to hit space again—to get your silver Sun back—to be reinstated as a commander!"

That tore through Rhiannon's fog and he reacted. He straightened his seventy nine inches into the position of attention. "I'd like nothing better, sir," he said.

Karrin made a great show of inspecting their immediate surroundings for eavesdroppers.

He said: "This is a very important, a top secret mission. We—the Council—believe that you are the only man who can fly it. We selected you from among thousands, Rhiannon!"

Rhiannon stood ever more stiffly, his face incandescent.

"Yes *sir*. I didn't know you were a Council Member, sir."

"Very few people do," Karrin replied dryly. "Now, soldier, a special boat is being tuned up at my private field. Do you know where that is?"

"Outside in back, sir. I've worked on your boats."

Karrin nodded. "Then go there immediately and wait. Talk to no one. I have to confer with President Naro before—"

"President *Naro*, sir!"

Karrin saluted theatrically and Rhiannon responded with eyes afire. The big man executed a neat about-face and marched one two through the door. And looking after the broad back, Karrin speculated where to place the death shot when the time came.

The nebula hung to starboard, seeming almost at arm's length from the ports; a silver pinwheel; a thirty thousand light year toy. Rhiannon jockeyed the boat closer and closer to the Rebel craft, his big hands skipping over the board with consummate, unthinking skill. He shot out the hand-line and it snaked to the airlock of the other boat.

Janus, holding the briefcase flat against his belly, stepped into the lower portion of the single spacesuit and ducked under and up into the top portion that hung from its rack. The muffled clicks as he turned the sealing handles were the only sound in the cabin. Then his voice came metallic from the speaker. "We'll contact you, Karrin, if we need you again—although I think this trip should be the last one." He inflated the suit and stamped several times, testing the suit's perfection by the ringing in his ears.

Karrin's reply was purposefully vague, with an eye to Rhiannon. "There should be use for the Security Chief of Federation Spacelines even after the war is over, Janus. A—ah—'Rebel' underground will likely start up—and as you've already seen, a man with a briefcase will hardly doubt the purity of my kitchens or suspect one of my cabin-boys of unwanted partisanship. I have some very cooperative men working for me."

Putting a boot on the hatch-ladder, Janus showed a sardonic grin through his faceplate. "Every man's purse is a traitor—"

Karrin sliced off the words with a quick gesture and shot a look at Rhiannon. The tubemonkey was staring through the front port at the stars, his face a caricature of bliss.

Janus shrugged, saying: "I thought you said he was *nicht*—" and swung himself clumsily up the ladder. "Besides," he added, "weren't you going to *convince* him of the necessity for silence?" He disappeared into the airlock. There was an airy *phoot* sound as he let himself into the void.

Karrin walked over to the front port and watched for Janus to become visible on the near length of the line. Watched, too, Rhiannon's reflection in the glass. The big man was gaping at the nebula and twitching the thick muscles of his neck in ecstasy. Karrin felt an urge to snicker.

"Good to get back, eh?" he asked.

Rhiannon pointed. "There's your friend, sir."

Janus was bobbing, hand over hand, toward the unmarked Rebel boat. His faceplate gleamed once as it caught the fire of the nebula.

Then, before Karrin's paling face, the silver cigar that was the other boat suddenly threw off into space a thin leafing of curved misshapen plates. It grew whiskers that were ray-guns and the Nova sign of the Patrol blinked into being on its nose. The transformation took just three seconds, and on the tick of the fourth there was a honk from Karrin's telaudio to announce that the revealed law-boat desired contact.

Hissing between his clamped teeth Karrin leaned over Rhiannon's wide shoulder and speared a finger at the control board. The Patrolmen had made the mistake of judging his boat at its space-yacht face value, but it was far more than that.

The "yacht's" concealed atomicannons blasted the other craft into radioactive dust. The frantically gesticulating figure of Janus was swallowed by the glare, and when space darkened again there was only the fused cable end, chewed off short near Karrin's porthole.

"Ge-ez!" cried Rhiannon. "Why'd you do that?"



"Why'd you do that?" cried Rhiannon.

"Didn't you see?" Karrin snapped. "It was a Rebel boat! Janus must have been a spy!"

"But there was a Patrol Nova on—"

"Rhiannon—you've done a magnificent job!" Karrin clapped a hand on the giant's arm and tightened it emotionally. He slipped the safety on his pocketed atom pistol with the other hand. "That wasn't a Nova—that was the Rebel Tetra!"

Rhiannon looked up at him, his forehead plowed over with thought; then gradually a wide grin spread his lips. "We done it, didn't we?"

"We sure did."

Karrin's face was flattened at the cheeks. How the Patrol had known of this meeting he would never know, short of torturing each of his "cooperative men." Janus was gone. The briefcase was gone. The real Rebel boat was probably bright drifting dust somewhere between here and Llarn's moon. Karrin shivered.

Would the Patrol have his office covered? Had they known *whom* they were trapping? Or had the tip-off not mentioned names?

"One way to find out."

Rhiannon looked up vaguely. "What, sir?"

"Get us back to Llarn, Rhiannon. I've got to report this to the President."

The swirling salt of the nebula moved out of the port and vanished as the big man tailed the boat around and side-stepped it into hyper-space. Karrin stood with wet hands clasped at his back. My papers. My money. I'll get them and make a run for Rebel H.Q. Surely the tip had not implicated him or he would never have gotten off Llarn in the first place. The Patrol would have seen to that: they knew that so many things could go wrong out in space.

Such as, he thought with grim satisfaction, what *had* gone wrong.

The Government Spaceport was emptied and darkened by the evening. Steve Podalski and his brethren had gone to their homes, Tweety had gone sailing up into the stratosphere to sleep, and the only living creature was Sergeant Atoms who lay twitching his paws in a dream-chase.

From the floor of Bed 52 Rhiannon watched Karrin labor up the motionless 'scalator, saw the lights flicker on, saw his employer move about shoving things into a carrycase.

Rhiannon's affliction may be said to have been "stroboscopic" in character. That is, his brain functioned with an irregular alternation of clarity and fuddle. At this moment the lights were on in that great skull and his brain cells were skittering about, playing with a Thought.

It had been a Patrol boat. He had seen the Nova. It *had* been a Patrol boat. He'd *seen* that Nova.

He shifted uneasily in his wrappings of tubemonkey suit and reflections. He looked up again at Karrin's office. The man had moved back from the window; only his head was visible, seeming to roll like Tweety back and forth on the broad sill as he crossed from safe to desk, desk to safe. That distant face was sculptured in pure anxiety. Karrin was obviously, was definitely, not reporting to President Naro. He wasn't doing anything of the kind.

Rhiannon put these observations one under the other, added them, and got the right answer. He'd been taken. Just as his fellow workers could play incredible jokes on him—when Stevie wasn't around—and have them pan out because of his braincut, so had Spy Karrin pulled a whopper.

Having worked this out, the busy cells slowed down, the lights began to dim behind the giant's dulling eyes. He stood there in the darkness, having one grim determination, and not knowing quite why he had it.

Karrin came out of his office and grunted down the 'scalator, unused to the knee action of climbing and descending. His shadowy figure came across the floor, gradually giving its details. His face was red, his eyes were feathered with red; he hugged the carrycase like a mourning Apache mother.

"Ready?" he asked.

Rhiannon blocked the door; his voice came puzzledly: "I ain't going."

The carrycase thudded to the floor; it didn't bounce, but if it had, the appearance of Karrin's atom pistol would have shaded the second thud. Rhiannon planted his legs like standards.

"I ain't going to fly you anyplace," he said, "an' I ain't gonna let you go either. I—don't know why—I—can't—won't—"

At that moment a door rolled open at the far end of 52, and the tall, wary shapes of Patrolmen blinked through the rectangle of light into the dark pool of the Bed. They made directly for the still lighted office.

Silently, silently! Karrin had to reach to do it. He reached high, standing on tiptoe, and brought the butt of his gun down on Rhiannon's head. The giant made a sound like a baffled ape and took a forward step. His outflinging leg

struck the floor without sensation and buckled. The gun went up and came down twice again.

Rhiannon felt a cloth-ripping pain in his head. Static crackled and slammed into his brain. It swelled louder and more penetrating; then muffled down to lengthening drumrolls.

The nebula beckoned him from his straight path back to Polaris. He circled it carefully, although there wasn't any sign of danger. It wasn't a very interesting nebula. He wheeled Karrin's boat once again toward Polaris and his three-headed friends. Sergeant Atoms sat alertly at his side.

Then suddenly, terrifying, the boat pulled away from under their feet and left them cold and lonely in airlessness. The sweet stars began to blink out in clusters; the celestial static dimmed down into the silence of infinite sleep.

From somewhere in this dying universe came a cold and wet nose. It sniffed anxiously at his face and red-matted hair.

A whine. Another louder whine; and a scratch of claws on concrete.

Rhiannon opened his eyes.

There were walls and the concrete floor and the hovering, shadowed cradles. There was the crouching figure of Karrin, seen from below and distorted, framed briefly in the door. There was a mud-colored shadow that sniffed and whined and gave its tail little hesitant twitches.

Then Rhiannon's eyes blinded and closed; he found himself back in that fearful, dimming universe. The distant sparking of the space-boat's jets—a few stars to shape the emptiness.

Rhiannon's last desperate, melting thought was: Atoms!—Atoms—we gotta catch up to that boat!—come on—we—gotta get back in that—boat—

The scratching claws went away. The last star was lost and the velvet blackness, without entity, was complete.

Karrin faded as quietly as a cat out the door and hurried into his boat, darted forward to the control-cabin and slammed down a lever. With a rumble the

ground-ramp folded in and the hatch sealed itself shut. He leaned against a port and shielded his eyes from the interior glare.

The noise had attracted the Patrolmen. They boiled through the far door and came streaking across the field, their guns spitting tight green flame.

Karrin thumbed his nose at them and laughed. A moment later the boat was clawing its way toward Llarn's stratosphere.

He set the spectro for the tiny moon and turned away to relax on the bunk. His "yacht" embodied principles developed by his own technicians—armament and locomotive potentials unknown to the Patrol—and he knew that he was safe from them. He regretted, however, that the hyper-space drive was useless for such short distances, for with it he might have reached his destination in less than a second. But with it also, at such a range, came the danger of overshooting, nailing himself and the boat a mile into the ground, and so he used the regular blasts and was thankful for his advanced shields. The Patrol might spot him, tail him—but that was all.

Smiling, he stretched out on the bunk, reached for a book, and settled himself for the twenty hour trip.

Beneath the bunk, curled in the warm darkness, Sergeant Atoms had settled himself for the trip long ago, for his master's dying thought-command had been an urgent and overpowering one, and this space-boat had been pictured and pointed out as clearly from its fellows as had been the "firing button" among the myriad devices on the dummy control board. An obedient but sleepy Atoms had entered the boat almost at Karrin's heels; unheard and unseen in the confusion of rumbling hatches and charging Patrolmen; very eager to get back to his interrupted dream-chase. With all his famous quiet and quiescence—he slept.

After a while Karrin yawned. The cabin seemed stuffy. He looked up from his book and his eyes happened to fall on the oxygen gauge. He felt a momentary chill. As there had been no time to recharge, it was very fortunate that there had been no need: Rhiannon wasn't coming along.

"Almost empty," he breathed. "I'll barely make it." He put the book aside, turned over, and went to sleep.

Hours later, when the oxy-alarm clanged empty, he roused, sweat-soaked and gasping, to the realization that Rhiannon, in a manner of speaking, had

come along after all....

Lt. Dhene of the Rebels glanced out his office window, eyes resting puzzledly on the space-boat that sat silently where it had been brought down by the landing field's tractor-beams. He frowned, then continued writing his report:

"What would seem to have happened is this: Karrin, with a depleted store of oxygen and unaware of the animal's presence, undertook to flee here to escape the Patrol (see Rep. 151 and recordings of Patrol broadcasts M16, 17, N2), and in midpassage discovered the dog which must have somehow contrived to remain out of sight until that time. By then it was too late, for the tanks were empty and the oxygen in the body of the boat was not sufficient to last the trip. He could not turn back, and that he knew we would not risk sending a boat to pick him up is evinced by the fact that he did not call upon us to do so.

"I believe it likely that Karrin debated killing the dog as well as himself, but decided vengefully that the animal—indirectly the cause of his destruction—should suffer the agony of asphyxiation. Therefore he shot only himself (see enclosed microshots, showing interior of boat with corpse exactly as found after boat, due to erratic behavior, was beamed onto field as safety measure). The dog, however—"

Lieutenant Dhene looked up and grinned at the stern-wagging Atoms, working noisily over a *garn* steak beside the desk.

"—the dog, being very small and somewhat addicted to inactivity, survived the trip and led us a merry chase before his final capture. I request that we be allowed to adopt him as a mascot—"

Dhene chewed at his pencil, then laid it on the desk and clapped his hands.

"Here, boy," he growled, "you've given me a crazy kind of report to write up. Come here and give us a hand!—come on, speak! What's the story?"

Sergeant Atoms eyed him for a moment, growled softly, and returned to the steak.

*** END OF THE PROJECT GUTENBERG EBOOK TUBEMONKEY

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.